



119580

IN THE HIGH COURT OF ORISSA; CUTTACK

(ORIGINAL JURISDICTION CASE)

W.P. (C) NO. 23411 OF 2014

Code No. 010199

IN THE MATTER OF:

An application under Articles 226 and 227 of the
Constitution of India;

Presented in Court

[Signature]
29/11/2014

AND

IN THE MATTER OF:

An Application challenging the arbitrary action of the
O.P. No. 1 in directing the board to take action to refund
the examination fees already deposited by the
petitioner's association ;

AND

IN THE MATTER OF:

All Orissa Private Secondary Training School Management
Association represented through its Secy., Shri Raj Kishore
Jena, aged about 66 years, S/o Late Jhari Jena, Village Dalijji,
PO – Chandol, Dist – Kendrapda.



[Signature]
29/11/2014
Sandra Prasad Dhan
Advocate

Petitioner

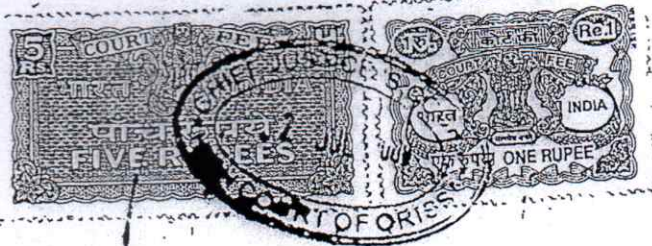
[Signature]

Vrs.

1. State of Orissa represented through its Secy,
School and Mass Education Deptt., Odisha,
Secretariat Building, Bhubaneswar, Dist.-
Khurda.
2. Director, Secondary Education, Odisha, At –
Heads of The department Building, At/PO.-
Bhubaneswar, Dist.- Khurda.
3. Board of Secondary Education, Odisha, Cuttack,
represented through its Secretary, At/PO./Dist.-
Cuttack.

... ... Opp.Parties.





IN THE HON'BLE HIGH COURT OF ORISSA, CUTTACK.

(ORIGINAL JURISDICTION CASES).

W.P.(C) No. 10,372 of 2008.

Code No. 019900.

IN THE MATTER OF

An application Under Art. 226 and
227 of the Constitution of India

A N D

IN THE MATTER OF

An application for direction to the
Opp. parties to allow the left out
students of Members of Un-recognised
Private Secondary Training Schools,
Management Association declared by the
Govt. as valid genuine institution to
appear in the ensuing C.T. Examination
2008 with regular students,

A N D

IN THE MATTER OF

An application seeking direction to the
Opp. party NO.1 to take a decision in the
matter before notifying the date and
Programme of ensuring C.T. Examination
2008 in obedience to the order of this
Hon'ble Court passed on in disposed of
O.J.C.No.10900/2000 passed in respect of
one of the members institution Bagdevi
S.T. School,

Cont.....

2:

A N D

IN THE MATTER OF

An application filed by All Orissa
Private Secondary Training Schools
Management Association represented
by its General Secretary Raj Kishore
Jena having it's Office at Daliji,
P.O.Chandola, Dist:Kendrapara.

..... petitioner.

-Versus-

1. State of Orissa, represented through
it's Secretary School & Mass Education
Dept. Secretariate Building,
Bhubaneswar, Dist:Khurda.
2. Director Secondary Education Orissa,
Heads of the Deptt. Building (6th Floor)
Bhubaneswar, Dist:Khurda.
3. Secretary Board of Secondary Education,
At-Bajrakabati Road, Cuttack,
P.O./P.S./Town and Dist:Cuttack.

..... Opp. Parties.

The matter out of which this writ
application arises was never before
this Hon'ble Court in its present
form save and except Q.J.C.No.10900/
2000 disposed of on dt. 20.8.2007.
and W.P.(C)No.1685/2002 disposed of
on 28.3.07.

Cont.....



11/9/09
20/9
8/10/09
11.9.09
D. H. C.-98]

Sr. No.
of Order

Date of
Order

ORDER WITH SIGNATURE

Office note as to action (if any),
taken on Order

W.P.(C) NO.10372 OF 2008

24.9.2008

Heard learned counsel for the petitioner and the learned counsel for the State.

The petitioner is an association of which various private secondary training schools are members. The grievance of the petitioner is that in many of its member institutions students were admitted for the sessions 1989-90 and 1990-91 and they successfully completed the course in the said institutions. But in view of the decision of the Government in annexure-4, permitting only students who were admitted prior to 1989 and completed the course till 1988-89 were permitted to appear in the examination.

Mr. Swain, learned counsel for the petitioner submits that since the petitioner has permitted students, who prosecuted their studies for the year 1988-89, a similar decision should have been taken for the students, who have prosecuted their studies thereafter in the institutions which are members of the petitioner-association. He further submits that in the case of one of such institutions which is also a member of the petitioner, this Court in O.J.C. No.17574 of 1998 while disposing of the writ petition directed the Director, Secondary Education to verify the records of the petitioner-institution regarding its eligibility for its students to appear in the ensuing C.T. Examination in accordance with law and if they are found eligible and qualified, such students shall be allowed to sit in the ensuing C.T. Examination subject to permission, if any, by the Board/University. Pursuant to the said order in respect of the petitioner-institution therein, a verification was also made as is shown in Annexure-5.

Learned counsel for the School and Mass Education Department, however, submits that there was mushrooming of such training schools in the State, for which the decision under Annexure-4 was taken by the Government



[O. H. C.-98]

Sl. No.
of Order

Date of
Order

ORDER WITH SIGNATURE

Office note as to action (if any),
taken on Order



** Corrected vide
Order dtd. 12.12.08.

M. M. Das, J.
M. M. Das, J.



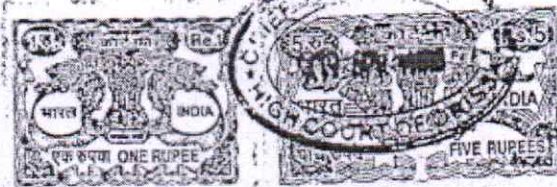
to discourage such growth of schools which function without prior approval of the Government.

Be that as it may, considering the case of the petitioner that students in many of the institutions, which are members of the petitioner-association have prosecuted their studies for the year 1989-90 and 1990-91, I am of the view that in the interest of justice, the opposite parties should be directed to examine as to whether the institutions which are members of the petitioner-association had the infrastructure facilities for imparting such course and as to whether, as a matter of fact, students completed their course in those schools. If on inquiry findings are in the affirmative, the Government may consider allowing such students to appear in future examination in the C.T. course. While considering thus, the Government should also take into account as to whether any prior approval or affiliation was necessary of any University or Board for imparting such course.

The writ petition is accordingly disposed of.

Urgent certified copy of this order be granted on proper application.

M. M. Das, J.
M. M. Das, J.



hchc

IN THE HON'BLE HIGH COURT OF ORISSA: CUTTACK.

(ORIGINAL JURISDICTION CASE.)

W.P.(C) No. 5640 of 2009.

Code No. 019900.

IN THE MATTER OF

An application Under Article 226 and
227 of the Constitution of India;

A N D

IN THE MATTER OF

An application Under Sec-4 of the
Orissa Education Act, 1969,

A N D

Presented in Court

B.O.

9.4.09

IN THE MATTER OF

An application filed seeking direction
to the Opp. parties to allow the left out
students of the petitioners Member insti-
tution admitted the students in the Academic
Session 1989-90, 90-91 and 91-92 and have
completed their course and otherwise
eligible to sit in the ensuring C.T.
Examination 2009, with regular students,
to fill up the Form and deposit the fees
as per Board Notification No. 2780 (Trg-
Cont) Dt. 8.3.2009 by condoning the delay,

A N D

IN THE MATTER OF

Signature Not Verified

Digitally Signed
Signed by: ARJUN KONHAR
Designation: ASSISTANT SECTION OFFICER
Reason: VERIFIED
Location: HIGH COURT OF ORISSA, CUTTACK
Date: 19-Nov-2025 16:14:28

: 2:

An application filed by the petitioner's Association pursuant to the order of the Hon'ble Court passed by in disposed of W.P.(C) No.10372/2008 on 24.9.2008, along with modification order dt.12.12.2008,

A N D

IN THE MATTER OF

An application filed by the petitioner's Association praying the Hon'ble Court to pass an order in their favour in the light of the order passed by this Hon'ble Court on dt.2.4.2009 in W.P.(C) No.4724/2009 (Jagannath Secondary Training School-Vrs-State and others) pending, for the students admitted in 1989-90, 90-91 and 91-92 batch and completed their course,

A N D

IN THE MATTER OF

An application filed by All Orissa Private Secondary Training Schools, Management Association represented by its General Secretary Raj Kishore Jena having it's office at Daliji, P.O.Chandol, Dist:Kendrapara.

..... petitioner.

-versus-

1.State of Orissa, represented through
it's Secretary ^{School} ^{Mass} Education and Youth
Service Deptt. Secretariate

Signature Not Verified

Digitally Signed
Signed by: ARJUN KONHAR
Designation: ASSISTANT SECTION OFFICER
Reason: VERIFIED
Location: HIGH COURT OF ORISSA, CUTTACK
Date: 19 Nov 2025 16:14:28

: 3:

1. State of Orissa, represented through
its Secretary School & Mass Education
Orissa, Secretariate Building,
Bhubaneswar, Dist: Khurda.
2. Director Secondary Education Orissa,
Heads of the Deptt. Building (6th Floor)
Bhubaneswar, Dist: Khurda.
3. Secretary Board of Secondary Education
At-Bajrakabati Road, Cuttack,
P.O./P.S./Town and Dist: Cuttack.

..... Opp. parties.

The matter out of which this writ application arises was never before this Hon'ble Court in its present form save and except W.P. (C) No. 10,372/2009 disposed of on 24.9.2008 and modified on 12.12.2008.

To

The Hon'ble Dr. B. G. Chaudhary, B. Sc. LL. B.,
Ph. D., (Law) the Chief Justice of Orissa
High Court and His Lordship's Companion
Justices of the said Hon'ble Court.

The humble petition of the
petitioners above named,

MOST RESPECTFULLY SHEWETH:

1. That, the petitioner is a Association and a
Jurisdic person by status represented by its General
Secretary who is a common citizen of India representing
All Orissa Private Secondary Training School Management

Signature Not Verified

Digitally Signed
Signed by: ARJUN KONHAR
Designation: ASSISTANT SECTION OFFICER
Reason: VERIFIED
Location: HIGH COURT OF ORISSA, CUTTACK
Date: 19-Nov-2025 16:14:28

XX

ORISSA HIGH COURT: CUTTACK

W.P. [C] No. 5640 OF 2009

In the matter of an application under Articles 226 and 227 of the
Constitution of India.

All Orissa Private Secondary
Training Schools Management Association,
represented by its General Secretary
Raj Kishore Jena.

Petitioner

-Versus-

State of Orissa & others

Opp. Parties

For Petitioner : M/s. B.Routray,
D. N. Mohanty, B.K.Biswal &
K.M.Samal.

For Opp. Parties : Addl. Govt. Advocate,
(For O.Ps 1 and 2)

M/s.P.K.Mohanty,
D.N.Mohapatra,
Mrs. J.Mohanty, P.K.Nayak,
S.N.Das, B.Dash &
P.K.Mohanty.
(For O.P.No. 3)

M/s. B.D.Pradhan, P.K.Singh,
O.P.Mohanty, Mrs.D.Mishra &
S. Mohapatra
(For intervenor)

Decided on 25.03.2010.

P R E S E N T :

THE HONOURABLE SHRI JUSTICE M. M. DAS

M.M. Das, J.

The petitioner is an association of Orissa Private
Secondary Training Schools and was also the petitioner in W.P.

Signature Not Verified

Digitally Signed
Signed by: ARJUN KONHAR
Designation: ASSISTANT SECTION OFFICER
Reason: VERIFIED
Location: HIGH COURT OF ORISSA, CUTTACK
Date: 19-Nov-2025 16:14:28